

		evidence establishing each of the factors outlined in Cal. Rules of Court, Rule 2.550, subd. (d). The Clerk to give notice of this ruling.
6.	Wells Fargo Bank vs. Noble Ale Works Inc. 24-01428508	Motion to Deem Facts Admitted OFF CALENDAR. NTS FILED
7.	Harper vs. Wells 25-01532690	1. Demurrer to Complaint 2. Case Management Conference 3. Order to Show Cause re: Dismissal (Failure to Serve) <u>Defendant Erinn Wells' Demurrer to Plaintiff Donica Harper's Complaint</u> Defendant Erin Wells' unopposed demurrer to Plaintiff Donica Harper's Complaint is SUSTAINED. (Code Civ. Proc. §430.10, subds. (d) and (e).) In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) Partition is an equitable action that is governed by statute. (Code Civ. Proc. § 872.010 et seq.) “ ‘ “[P]artition” is “the procedure for segregating and terminating common interests in the same parcel of property.” ’ [Citation.] It is a ‘ “ ‘remedy much favored by the law.’ ” ’ ” (<i>Summers v. Superior Ct.</i> (2018) 24 Cal.App.5th 138, 142.) “[P]artition, which is frequently denominated an absolute right [citation], is subject to waiver, and also to estoppel and similar equitable defenses.” (<i>Thomas v. Witte</i> (1963) 214 Cal.App.2d 322, 327.) The right of partition may be waived by contract, either express or implied